Richmond Valley Development Control Plan 2021

Part D
Rural Land Uses

This DCP applies to all land within the Richmond Valley Local Government Area.

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This Part primarily contains standards, requirements and considerations for development relating to rural land use types. It should be noted that not all rural land uses are covered by this Part and many maybe addressed in other Parts of this DCP. For example, dwellings in rural areas would be addressed in Part A, or Animal Boarding or Training Establishments are addressed in Chapter I-6.

Chapters contained within this Part are:

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Rural land uses cover a large range of land use types and activities including agriculture, rural industries, forestry, animal boarding or training establishments, Tourist and visitor accommodation, dwelling houses & dual occupancies, rural workers' accommodation, roadside stalls, kiosks and so on. Further examples can be seen in Figure D.1.

It is not the intent of this Part to capture all rural land uses but instead to concentrate on those warranting additional detail or explanation.

Agriculture is the main term associated with rural lands and consists of a vast range of primary production activities for the commercial production of food and fibre. Likewise, reference to rural development (other than agriculture) is equally vast.

The type of Rural development covered in this Part include:

- roadside stalls,
- kiosks (the new term covering general stores), and
- Intensive Livestock Agriculture (previously known as animal establishments, or intensive animal establishments).

Other rural land uses or activities that are addressed elsewhere in this DCP are as follows:

- rural subdivision—Part G Subdivision,
- dwelling houses, dual occupancies, rural workers' dwellings—Part A Residential Accommodation
- farm stay accommodation, eco-tourist facilities, caravan parks and camping grounds—Part E Visitor Accommodation, Caravan Parks and Camping Grounds
- caravan parks, camping grounds—Part E Manufactured Home Estates, Caravan Parks and Manufactured Home Estates
- Animal boarding or training establishments, and non-commercial animal boarding or training establishments—Chapter I-9 Animal Boarding and Training Establishments.

Information on standards and considerations presented within this Part are not exhaustive. Additional information may be required to address issues under section 4.15 of the EP&A Act.

It is recommended that preliminary discussions take place at an early planning stage for such developments to identify any specific issues needing consideration.

Undefined Land use terms

The Group term for agriculture, see structure of term in figure D.1, has scope to incorporate land uses that have not yet been specifically defined by the Standard Instrument LEP. Such land uses adopt the permissibility of the "parent" term, in this case Agriculture. The same can be said of other rural activities.

This DCP does not contain specific Chapters covering such undefined terms. As the case may be, the DCP provisions for a closely representative term may be used where applicable. Applicants will be required to undertake formal pre-lodgement consultation with Council under these circumstances. Council reserves the right to provide written guidelines or instructions to an applicant regarding such applications.

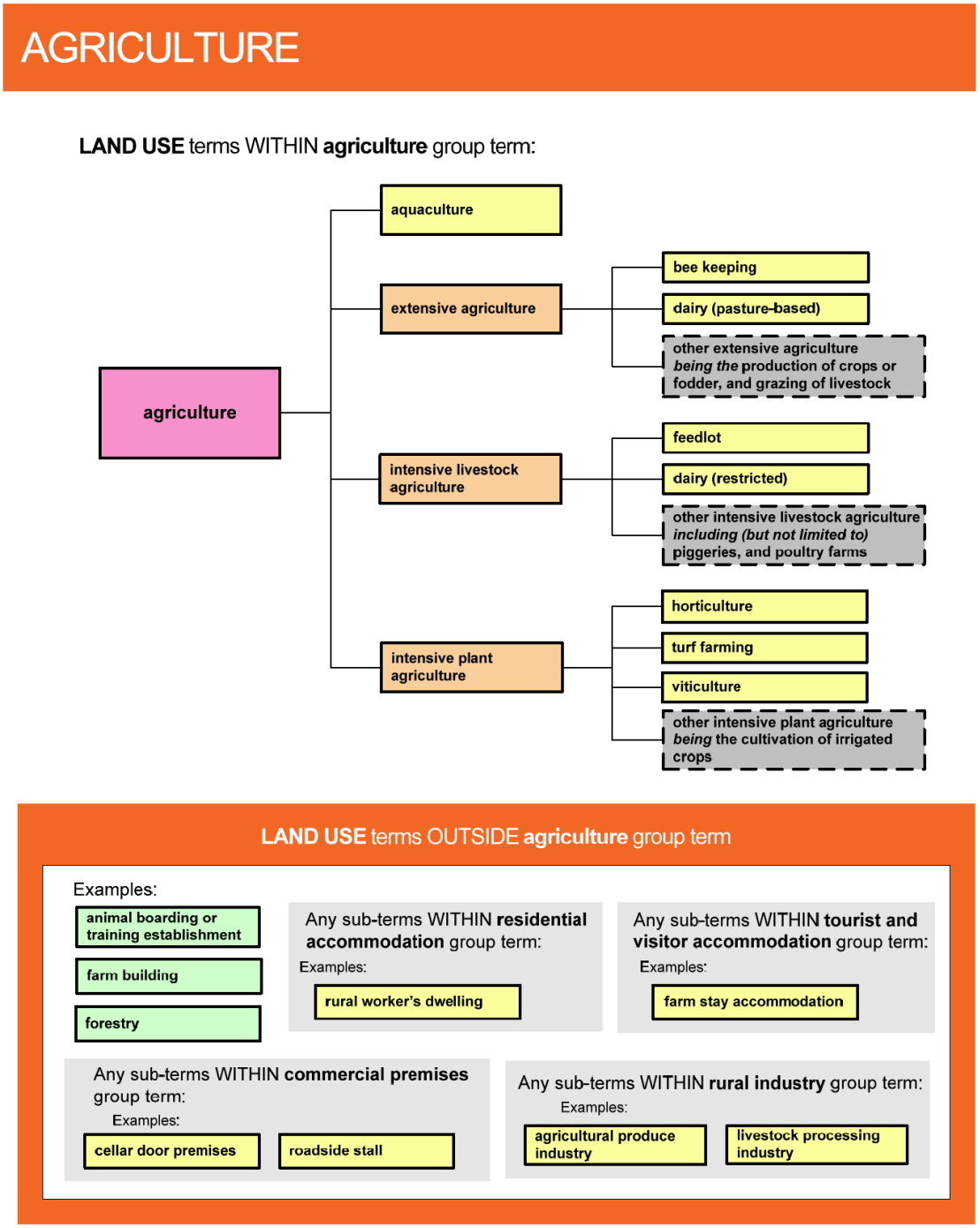


Figure D.1 General relationships between land-use terms in the Standard Instrument LEP (Source Department of Planning, Housing and Infrastructure Practice Note PN11-003)

Richmond Valley Development Control Plan 2021

Part D-1
Roadside Stalls

This DCP applies to all land within the Richmond Valley Local Government Area.

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Roadside Stalls can provide legitimate means of distributing locally produced goods to consumers within localities and to people who commute through rural areas. In addition, Roadside Stalls greatly minimise distribution energy costs as they negate the need to transport produce to a point of sale as they are sold close to property where it was grown or produced.

Roadside stalls and Roadside Vending

There is a very important distinction between 'Roadside Stalls' which are situated entirely within a private property, and 'Roadside Traders' or 'Roadside Vendors' which are situated and attended entirely within a public road.

This Chapter relates to the development consent requirements for 'Roadside Stalls'.

'Roadside Vendors' do not require development consent as they are itinerant users and require Council approval under section 68 of the *Local Government Act 1993*. If works are required a section 138 approval may be required under the *Roads Act 1993*. These approvals are not covered by this DCP. A Roadside Trading Application Form may be sourced from Council and may require a lease agreement to be drawn up between Council and the applicant, payment of annual fees, and submission of certificates of currency for public liability insurance.

A combination of 'Roadside Stall' and 'Roadside Trading' may also be proposed where circumstantial limitations arise, and the activity might require the use of both private land and a public road.

D-1.1 General Objectives

The general objectives of this Chapter are to:

(1) provide for the sale of locally grown and/or manufactured produce in appropriate rural locations on private land throughout the Local Government Area, as subject to development consent.

(2) promote locally grown production of food.

(3) encourage smaller scale agricultural pursuits which are more manageable for the rural landowner and more likely to be profitable and rewarding due to reduced production overheads.

(4) provide adequate design considerations to avoid unacceptable adverse impact upon amenity of the surrounding locality (noise, traffic etc) and any endangerment to local road users.

D-1.2 Planning Requirements

Objectives

(1) to summarise LEP provisions relating to Roadside Stalls.

Controls

(1) The dictionary to the *Richmond Valley Local Environmental Plan 2012* defines-

Roadside stalls as means a place or temporary structure used for the retail sale of agricultural produce or hand crafted goods (or both) produced from the property on which the stall is situated or from an adjacent property.

Note. See clause 5.4 of the LEP for controls relating to the gross floor area of roadside stalls.

Roadside stalls are a type of retail premises—see the definition of that term in this Dictionary.

(2) Land use Permissibility

Roadside stalls are permissible with development consent in the following Land Zones under the LEP:

- RU1 Primary Production
- R5 Large Lot Residential
- C3 Environmental Management
- E1 Local Centre
- E2 Commercial Centre

(3) Additional LEP Controls

(a) Clause 5.4(8) of the LEP applies additional controls for Roadside Stalls restricting such developments to an area no more than 10m^2. This provides an opportunity to establish a small stall of approximately 2x5 metres.

(b) Council considers the $10m^2$ only applies to the stall's display area and allowance will be made for additional awnings to be attached to the stall for weather protection.

D-1.3 Development Application Requirements

Objectives

(1) To describe the information that should be included in a Statement of Environmental Effects, including site selection criteria, to support a development application for a Roadside Stall.

(2) To outline assessment criteria and procedures for development applications to operate roadside stalls.

(3) To identify conditions of consent that should ensure the roadside stall can be operated in a safe manner.

Controls

(1) Retailing is prohibited in rural zones, however, special considerations are in place to permit Roadside stalls with development consent.

(2) Consent may be granted for roadside stalls within Zones RU1, R5 or C3 where it can be demonstrated that it will not adversely impact upon the amenity, access and safety of the local area and commuters.

(3) Development application for a Roadside Stall

Development application for a Roadside Stall should include the following:

- Show accurately on a plan where components of the stall are to be sited. Include a scale and location of all residences on adjoining land that are within 250 metres of the proposed stall.
- The reason for the establishment of the Roadside Stall.
- A description of produce intended for sale at the Roadside Stall.
- Show clearly where access to the property is proposed detailing adequate manoeuvring area(s) to ensure visiting vehicles enter and exit the property in a forward motion. Car parking wholly within the property for a minimum of three vehicles should also be provided.
- Entrance/exit-way(s) to the local road network must be constructed to Council specification and provide suitable line-of-sight distance for exiting vehicles. As a guide, around 150 metres is required to safely de-accelerate and pull off the road in a 100 km/h speed zone. In all instances, Council reserves the right to determine whether the placement and access to a stall is suitable and safe. All works required to be undertaken must be financed by the owner of the property or proponent of the Roadside Stall, including any works proposed on the road reserve verge.
- The physical construction and display area of the Roadside Stall shall have a gross floor area not exceeding $10m^2$ (in accordance with clause 5.4(8) of the LEP) and a height not exceeding 2.4 metres.

- The Statement of Environmental Effects (SEE) accompanying the application is required to designate hours of operation for the Roadside Stall as well as any operational detail which will constitute a Management Plan for the stall operation. In addition, the management plan shall detail the source and nature of produce on sale, with reference to the permissible produce list provided below.

- If the proposal will require the construction of a stall, design specifications shall be provided to demonstrate structural stability to the satisfaction of Council. Roadside Stalls are required to be small-scale semi-permanent structures which may easily be dismantled if abandoned or removed upon expiry of the consent period.

- Display or storage of food items must be a minimum of 700 mm above the floor or ground level and must preclude dust, vermin, pests and animals to the satisfaction of Council.

(4) Site Suitability

The suitability of the site for the purpose of accommodating a Roadside Stall will be assessed during the application process. Particular attention should be paid, but will not necessarily be limited to, satisfactorily addressing the following requirements:

- Line-of-sight distance – turnout(s) from the stall must provide adequate vision for drivers of vehicles exiting the property,

- Car-parking must be provided wholly within the property for a minimum of three (3) vehicles,

- Maintaining road safety is paramount and signage can distract and be extremely hazardous to drivers. Therefore, temporary signage for the stall will not be permitted to be erected by the proponent within or along the road. All other signage will be determined on merit, however, Council may deem it to be in the interest of safety that only signs warning the approach of a stall are appropriate.

- Additional works may be required to be undertaken within the Council road reserve to ensure the safety of all road users and may be required solely at the discretion of Council. Works within the road reserve will require additional approval in accordance with section 138 of the *Roads Act 1993*.

(5) Each development application will be considered and decided on its individual merits and is subject to all other requirements within other State & Council policies and those found elsewhere within this DCP. Depending on the nature of produce for retail, there may be additional health requirements concerning food preparation, handling and labelling of produce.

(6) Concurrence of State roads authority may be required

Roadside Stalls fronting a Classified Road and that will involve direct vehicular access to, or within 90 metres of, that Classified Road, will require concurrence

from the State roads authority. It is recommended that discussions are held with Council and the State roads authority early in the planning process.

(7) Conditions, Management Plan & Operation of the Roadside Stall

(a) Limited Consent

Any approval granted will be restricted to an operating period of 5 years after which this period may be extended upon application for a further period of 5 years as an amendment to the original consent. The granting of a limited consent facilitates the possible need for Council to review any changes or impacts the stall might have made on local traffic, and have regard to any possible road redesigns. A review also allows for a review of the management plan and operational compliance of the Roadside Stall.

Extension of the consent period will require lodgement of a Section 4.55 Application to Vary a Development Consent.

(b) Standard Conditions

The following conditions of consent (or similar wording) shall be applied to any consent granted for a roadside stall:

- Only offer for sale at the stall:
  - Fruit, vegetables and other produce grown or made on the property or from adjoining properties.
  - Cut fruit and vegetables grown on the property and manufactured food items, will be subject to health and hygiene requirements.
- One simply worded sign (i.e. 'Fruit Stall'), located at the entrance to the stall will be permitted as per 'business identification signage' (or otherwise as per merit consideration and condition of consent).
- Entry/exit points to the development must be in accordance with Council requirements, with vehicle manoeuvring to enable vehicles to enter and exit the property in forward manner.
- Any chemical treatment of food items shall be disclosed alongside the sale price of the item, including treatment during the growing of the fruit, nut or vegetable as well as any treatment following harvest. Any bottled preserves shall identify ingredients as per health requirements and perishables will require refrigeration.
- Adherence to the hours of operation and management plan specified within the application and the accompanying Statement of Environmental Effects (SEE).

Richmond Valley Development Control Plan 2021

Part D-2

Kiosks (as General Stores)

This DCP applies to all land within the Richmond Valley Local Government Area.

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Kiosks are a type of small scale retail premises selling food, light refreshments and convenience goods.

The Standard Instrument LEP no longer defines a land use term for 'General Store' therefore the term 'Kiosk' has been recommended by the Department of Planning, Housing and Infrastructure as the substitute.

D-2.1 General Objectives

The general objectives of this Chapter are to:

(1) provide for small scale retail premises that can service the local community.

(2) ensure the premises are of a scale that is in keeping with the character of the locality.

D-2.2 Planning Requirements

Objectives

(1) to summarise LEP provisions relating to Kiosks in rural areas.

Controls

(1) The dictionary to the *Richmond Valley Local Environmental Plan 2012* defines-

kiosk means premises that are used for the purposes of selling, food, light refreshments and other small convenience items such as newspapers, films and the like.

Note. See clause 5.4 of the LEP for controls relating to the gross floor area of a kiosk.

Kiosks are a type of retail premises—see the definition of that term in the Dictionary to the LEP.

(2) Land use Permissibility

Kiosks are permissible with development consent in the following Land Zones under the LEP:

- RU1 Primary Production
- RU5 Village (as part of the group term Commercial Premises)
- R1 General Residential (as part of the group term Commercial Premises)
- E1 Local Centre
- E2 Commercial Centre
- RE1 Public Recreation
- RE2 Private Recreation
- C3 Environmental Management

however, this Chapter only relates to Kiosks in Rural zones.

(3) Additional LEP Controls

(a) Clause 5.4(6) of the LEP applies additional controls for Kiosks restricting such developments to an area no more than 150 m^2 of gross floor area.

D-2.3 Development Application Requirements

Objectives

(1) to describe the information that should be included in a Statement of Environmental Effects, including site selection criteria, to support a development application for a Kiosk.

(2) outline assessment criteria and procedures for development applications to operate Kiosk.

(3) identify conditions of consent that should ensure the Kiosk can be operated in a safe manner.

Controls

(1) Retailing and other commercial premises are prohibited in rural zones, however, special considerations are in place to permit Kiosks with development consent.

(2) Kiosks are permitted with development consent where it can be demonstrated that it will not adversely impact upon the amenity, access and safety of the local area.

(3) Development application for a Kiosk

An application for a kiosk should include the following information:

- Show accurately on a plan where components of the Kiosk are to be sited. Include a scale and location of all residences on adjoining land that are within 250 metres of the proposed kiosk.
- A description of the types of products and services intended to be sold or provided at the premises.
- Show clearly where access to the property is proposed detailing adequate manoeuvring area(s) to ensure visiting vehicles enter and exit the property in a forward motion. Car parking wholly within the property with a minimum of 1 car parking space per 40 m^2 of gross floor area.
- Kiosks in rural areas should be operated in conjunction with a dwelling house on the same land.
- Entrance/exit-way(s) to the local road network must be constructed to Council specification and provide suitable line-of-sight distance for exiting vehicles. As a guide, around 150 metres is required to safely de-accelerate and pull off the road in a 100km an hour speed zone. In all instances, Council reserves the right to determine whether the placement and access to a Kiosk is suitable and safe. All works required to be undertaken must be financed by the owner of the property or proponent of the kiosk, including any works proposed on the road reserve verge.
- The physical construction and display area of the kiosk shall have a gross floor area not exceeding 150 m^2 (in accordance with clause 5.4(6) of the LEP).
- The Statement of Environmental Effects (SEE) accompanying the application is required to designate hours of operation for the kiosk.
- If the proposal will require the construction of a stall, design specifications shall be provided to demonstrate structural stability to the satisfaction of

Council. Kiosks are required to be small-scale semi-permanent structures which may easily be dismantled if abandoned or removed upon expiry of the consent period.

(4) Site Suitability

The suitability of the site for the purpose of accommodating a kiosk will be assessed during the application process. Particular attention should be paid, but will not necessarily be limited to, satisfactorily addressing the following requirements:

- Line-of-sight distance – turnout(s) from the kiosk must provide adequate vision for drivers of vehicles exiting the property.
- Car-parking must be provided wholly within the property.
- Maintaining road safety is paramount and signage can distract and be extremely hazardous to drivers. Signage for the premises will not be permitted to be erected by the proponent within or along the road reserve. All other signage will be determined on merit, however, Council may deem it to be in the interest of safety that only signs warning the approach of a Kiosk are appropriate.
- Additional works may be required to be undertaken within the Council road reserve to ensure the safety of all road users and may be required solely at the discretion of Council. Works within the road reserve will require additional approval in accordance with section 138 of the *Roads Act 1993*.

(5) Each development application will be considered and decided on its individual merits and is subject to all other requirements within other State & Council policies and those found elsewhere within this DCP. Depending on the nature of produce for retail, there may be additional health requirements concerning food preparation, handling and labelling of produce.

(6) Concurrence of State roads authority may be required

Kiosks fronting a Classified Road and that will involve direct vehicular access to, or within 90 metres of, that Classified Road, will require concurrence from the State Roads authority. It is recommended that discussions are held with Council and the State Roads authority early in the planning process.

Richmond Valley Development Control Plan 2021

Part D-3

Intensive Livestock Agriculture

This DCP applies to all land within the Richmond Valley Local Government Area.

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Intensive Livestock Agriculture is permissible in areas designated by the following zones:

- RU1 Primary Production
- E4 General Industrial

Such development is prohibited in all other zones.

By definition, *Intensive Livestock Agriculture* is for the keeping or breeding of livestock, for commercial purposes, where they are wholly or substantially fed by a supplementary feed source. However, it explicitly excludes extensive agriculture (primarily pasture based grazing of livestock) and aquaculture (see SEPP *(Primary Production) 2021* for details).

D-3.1 General Objectives

The general objectives of this Chapter are to:

(1) define what is considered to be Intensive Livestock Agriculture for the purposes of the *Richmond Valley LEP 2012*.

(2) determining the maximum number of animals that may be kept before an establishment is considered to be commercial in nature and therefore Intensive Livestock Agriculture.

(3) guide what information will be required to support an application for Intensive Livestock Agriculture.

(4) provide controls to protect rural amenity.

(5) provide adequate design considerations to avoid unacceptable adverse impacts to a locality.

D-3.2 What is Intensive Livestock Agriculture?

Objectives

(1) define *Intensive Livestock Agriculture* in the context of the *Richmond Valley LEP 2012.*

(2) establish what is considered to be Intensive.

Controls

(1) The Richmond Valley LEP 2012 is a Standard Instrument LEP. The dictionary to the Standard Instrument LEP defines:

Intensive Livestock Agriculture *means the keeping or breeding, for commercial purposes, of cattle, poultry, pigs, goats, horses or other livestock that are fed wholly or substantially on externally-sourced feed, and includes any of the following:*

(a) dairies (restricted),

(b) feedlots,

(c) piggeries,

(d) poultry farms,

but does not include extensive agriculture, aquaculture or the operation of facilities for drought or similar emergency relief.

Note. Intensive livestock agriculture is a type of ***agriculture***—see the definition of that term in the Dictionary to the LEP.

(2) Intensive Livestock Agriculture is prohibited in all zones except:

- RU1 Primary Production
- E4 General Industrial

(3) Development consent is required to operate an Intensive Livestock Agriculture activity.

(4) What does intensive mean?

For the purposes of this Chapter, intensive is where the population density of livestock kept on the land, or within premises, will exceed the general carrying capacity of the land, and necessitates supplementary feeding. This supplementary feed may be sourced from elsewhere on the property, or from external sources.

D-3.3 Development Application requirements

Objectives

(1) To assist with the presentation of information to accompany a development application.

Controls

(1) The keeping of agricultural livestock at concentrated populations will warrant the lodgement of a development application.

(2) Council may consider on merit whether a population is considered too small to be commercial. Notwithstanding, the following guide is provided:

- yards or buildings that can accommodate more than ten (10) cattle, and where the animals have access to pasture based grazing for less than 10 hours in a 24 hour period,
- piggery (including free range) containing more than five (5) breeding sows,
- poultry farm (including free range) containing more than twenty (20) birds,
- rabbit farm consisting of over twenty rabbits (20).

(3) Areas where Intensive Livestock Agriculture is unlikely to be supported-

- Proximity to established residential, rural residential developments and to future residential or rural residential developments as delineated within Urban or Rural Land Use Strategies prepared for Richmond Valley.
- Proximity to either approved, established and operating forms of intensive livestock agriculture or animal boarding and training establishments.
- In addition, Council cannot support the establishment of Intensive Animal Establishments where cumulative developments may present an increased amenity risk. The establishment of intensive livestock agriculture adjoining or close to sites will be considered and ultimately determined on a merit basis with the onus strongly on the applicant to demonstrate through detailed analysis why additional establishments will not be a risk.
- Intensive Poultry sheds will not be supported where they are:
  - (i) within 1.5 kilometres from any existing poultry establishment, or
  - (ii) within 500 metres of areas identified within Land Release Strategies, or
  - (iii) if the road access is unsealed.

(4) Development Application Requirements

A Development Application for an Intensive Animal Establishment must include but not necessarily be limited to the following detail within a comprehensive Statement of Environmental Effects:

(a) **Odour -** Odour Modelling Report prepared by a suitably qualified person which outlines the extent of impacts of any odours both from the proposed land use and any cumulative impacts due to any existing land uses which may already emit offensive odours. Such report is to be prepared with regard for likely climatic and prevailing conditions. The Odour Report is also to submit operational procedures to further mitigate any impacts and to identify the extent of reduction based upon these practices.

(b) **Noise** - A Noise Impact Report prepared by a suitably qualified person which outlines the extent of impacts of noise from the proposed use including the full extent and activities to be operating on site and also the activities associated with the proposal including the type and numbers of traffic which will be generated by the land use. The Report is also to make recommendations for the mitigation of any noise impacts and is to identify the extent of noise reduction as a result of these measures being implemented. *Section I-7 – Noise Impact Assessment* (NIA) provides additional detail as to what is required for the preparation of a detailed application involving NIA.

(c) **Traffic and Road Haulage** - A Traffic Report is required to be submitted and must be prepared by a suitably qualified person, detailing, but not necessarily limited to:

- the types and numbers of traffic to be generated by the proposal;
- details of the existing condition, widths, depths of pavement and its suitability or otherwise for the carriage of transport to be associated with the land use;
- proposed upgrading to be undertaken by the applicant including location(s) of width or depth of pavement, sealing of pavement and extension of stormwater pipes or culverts along the route(s).
- Detailed plans showing where access to the property is proposed and adequate manoeuvring area(s) are provided to ensure visiting vehicles enter and exit the property in a forward motion. Car parking is to be provided wholly within the property for a minimum of three vehicles, however more may be required based upon detail supplied as to staffing numbers and operational procedures.

(d) **Access** - Entrance/exit-way(s) to the local road network must be constructed to Council specification and provide suitable line-of-sight distance for exiting vehicles. As a guide, around 150 metres is required to safely de-accelerate and pull off the road in a 100km an hour speed zone. In all instances, Council reserves the right to determine whether the placement and access is suitable and safe. All works required to be

undertaken must be financed by the owner of the property or proponent of the development, including any works proposed on the road reserve verge.

(e) **Statement of Environmental Effects** - The Statement of Environmental Effects (SEE) accompanying the application is required to describe in detail all aspects of the operation of the establishment which may then be transcribed into a Management Plan for the land use.

(f) **Environmental Management Plan** - An Environmental Management Plan shall be prepared for the operation of the animal establishment detailing, but not necessarily limited to the following matters:

- Treatment and disposal of litter and effluent;
- Odour Management;
- Noise Management;
- Biosecurity measures for the control and quarantine of exotic, endemic or emergency diseases;
- Disposal of dead animals;
- Food Storage and Vermin control;
- Erosion control measures;
- Water and Drainage management;
- Chemicals and Fuel storage;
- Complaints register;
- Guidelines for the Operation, e.g. NSW Meat Chicken Farming Guidelines (NSW);
- Water storage and harvesting methods; and
- Dust and air-borne particulate matter management.

(g) **On-Site Sewage Management** - The preparation and review of On- Site Sewage Effluent Disposal for these forms of land use is to be undertaken in accordance with Council's On-Site Sewage and Wastewater Strategy and associated guidelines. Further effluent treatment methods and devices may be required for solids disposal and it is recommended pre-lodgement discussions be held with Council to confirm the treatment level and technique.

(h) **Land Use Conflict Risk Assessment (LUCRA)** - A LUCRA component to provide a site-specific conflict risk assessment relevant to the location and sensitivity of adjacent, adjoining and nearby land uses to ultimately determine the feasibility of the establishment in the location proposed and any required management response to potential conflicts. Section I-11 addresses the requirements of a LUCRA in detail and should be referenced comprehensively for this component of the application.

(5) Public Exhibition and Consultation

The Public Exhibition and any required consultation shall be conducted in accordance with the *Richmond Valley Council Community Participation Plan 2020* and generally requires a minimum 14 day exhibition period.

(6) Site Suitability

The suitability of the site for the purpose of accommodating an Animal Establishment will be assessed during the application process. Particular attention should be made, but not limited to, the following site suitability specifications so as to minimise poor site choices and wasted resources.

(a) **Large and isolated rural allotment** so as to provide ample distance between sensitive receivers in respect to noise, odour and biohazard 'buffer' requirements.

(b) **Adequate access** so as to provide ample entry turnout and line-of-sight distance relevant to the intended vehicular type and numbers proposed for the use of the property. The local road network from the larger arterial roads must be of a suitable width, grade and condition to be able to adequately support the intended establishment. The proponent may be required to upgrade the road (and any associated works) to a condition suitable and/or pay contributions for use of the local road network based upon the assessment of Council.

(c) **Relatively Flood and Bushfire Free**.

(d) **Relatively free of other Environmental Constraints** – in particular those indicated within a Natural Resource Sensitivity map and associated provisions (see *Section H-3 – Natural Resource Sensitivity* for further detail and requirements).